

Dr. Hemanta Kumar Dash vs Upasana Swain Opposite Parties on 20 June, 2025

IN THE HIGH COURT OF ORISSA AT CUTTACK

TRPCRL No.52 of 2024

Dr. Hemanta Kumar Dash Petitioner
Ms. Debadeepta Sahoo, Advocate

-versus-

Upasana Swain Opposite Parties

Mr. Jateswar Nayak, Advocate

CORAM: JUSTICE SANJAY KUMAR MISHRA

ORDER

20.06.2025 Order No.

09. This matter is taken up through hybrid mode.

2. Learned Counsel for the parties are present.

3. In terms of order dated 12.05.2025, both the parties are also present before this Court.

4. A query being made as to what prevented the Petitioner to act in terms of Mediation Report dated 05.11.2024, the Petitioner submits, because of some family problem so also financial constraints, he could not act as per the agreed terms as recorded by the learned Mediator on 05.11.2024. However, the Petitioner undertakes to do the needful within six weeks hence and undertakes to pay the entire amount of Rs.16 lakhs at a time, instead of paying the same in three instalments as agreed on 05.11.2024 before the learned Mediator.

5. So far as application under Section-13B of the Hindu Marriage Act, 1955, the petitioner submits that the Opposite Party-wife did not co-operate with him to file the said joint application before the concerned Court and demanded the entire amount before filing the said application. In view of the said submission, both the parties are directed to cooperate with each other and file application under Section-13B of the Hindu Marriage Act, 1955 before the Judge, Family Court, Sambalpur within 15 days hence.

6. On filing of such application, the Judge, Family Court, Sambalpur shall do well to deal with the said application and proceed further in terms of Mediation Report dated 05.11.2024, which will form part of the said joint petition of compromise, and dispose of the matter by ordering to pay the agreed amount within four weeks from the date of filing the Petition under Section 13B of the Hindu Marriage Act, 1955.

7. It is made clear that both the parties shall exchange their belongings in terms of clause-3 of the said Mediation Report dated 05.11.2024 within the said period of 15 days and take necessary steps for withdrawal of cases pending before different Courts in terms of clause-5 of the said Mediation Report.

8. It is made further clear that if the Petitioner so also Opposite Party fail to act in terms of the direction/observation of this Court so also terms of settlement before the learned Mediator, appropriate order will be passed on the adjourned date.

9. The matter be listed in the week commencing from 4 th August, 2025.

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Location: High Court of Orissa, Cuttack.